

July 10, 2026
Dept. 9
Civil Tentative Rulings

12.	26CV0806	JEVAN JAMES CHRISTIANSEN V. DILLYN CHRISTINE NISBET
COMPROMISE: MINOR CLAIM		

On March 19, 2026, Soren Christensen, a parent of the minor who is the subject of this filed an ex parte application to be appointed guardian ad litem for the purpose of this proceeding, which was approved by the court on March 24, 2026.

* * *

This is a Petition to compromise a minor's claim. The Petition states the minor sustained serious injuries including subdural hematoma, T7 compression fracture, pubic rami fracture and sacral fracture resulting from an accident in 2020. A copy of the accident investigation report was filed with the Petition, as required by Local Rule 7.10.12A(4). Petitioner requests the court authorize a compromise of the minor's claim against defendant/respondent in the gross amount of \$675,000.00.

The Petition states the minor incurred \$471,375.72 in medical expenses, of which the negotiated amount of \$140,000 will be deducted from the settlement. This includes reimbursement of \$109,200.00 in medical expenses to be paid to private health insurance as well as a lien from UC Davis Medical Center for \$30,800.00. Copies of invoices for the claimed medical expenses are not attached to the Petition as required by Local Rules of the El Dorado County Superior Court, Rule 7.10.12A.(6).

The Petition states that the minor has not fully recovered and that the minor will suffer from permanent residual cognitive issues and anxiety. A doctor's report concerning the minor's condition and prognosis of recovery is attached, as required by Local Rules of the El Dorado County Superior Court, Rule 7.10.12A.(3).

The minor's attorney requests attorney's fees in the amount of \$230,000.00, which represents 34% of the gross settlement amount. The court uses a reasonable fee standard when approving and allowing the amount of attorney's fees payable from money or property paid or to be paid for the benefit of a minor or a person with a disability. (Local Rules of the El Dorado County Superior Court, Rule 7.10.12A.(8); California Rules of Court, Rule 7.955(a)(1).) The Petition does include a Declaration by the attorney as required by California Rules of Court, Rule 7.955(c).

The minor's attorneys also request reimbursement for costs in the amount of \$2,295.99 and \$10,989.87. There are no copies of bills substantiating the claimed costs attached to the Petition as required by Local Rules of the El Dorado County Superior Court, Rule 7.10.12A.(6).

The minor's guardian requests reimbursement of educational expenses in the form of semi-private tutoring in the amount of \$7,410.00. There are copies of bills substantiating the

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claimed costs attached to the Petition as required by Local Rules of the El Dorado County Superior Court, Rule 7.10.12A.(6).

With respect to the \$284,304.14 due to the minor, the Petition requests that the funds be invested in a single-premium deferred annuity, subject to withdrawal with court authorization. See attachment 18(b)(3), which includes the terms and conditions of the annuity.

On June 22, 2026, a Declaration of Dan L. Rainsbury, Esq. in Support of Plaintiff's Minor's Compromise Petition was filed which provided the following exhibits correcting the Petition's omissions in compliance with Local Rules of the El Dorado County Superior Court, Rule 7.10.12:

1. Amended Exhibit 18(b)(3) reflecting a revised annuity funding date of September 10, 2026;
2. Copies of all claimed costs incurred by David Allen & Associates (\$10,989.87);
3. Copies of all claimed costs incurred by Rainsbury Law Group (\$2,295.99);
4. Copies of all medical expenses and payments made by Blue Shield health insurance along with documentation of the lien reduction set forth in the Petition; and
5. Copies of the lien from UC Davis/Healthcare Advocates along with lien reduction confirmation.

TENTATIVE RULING #12:

APPEARANCES ARE REQUIRED ON JULY 10, 2026 AT 8:30AM IN DEPARTMENT 9.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.